

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Bernardo Gutierrez	Team: Team # 5	CCRB Case #: 201303647	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 04/27/2013 9:55 PM	Location of Incident: 34th Precinct stationhouse	Precinct: 34	18 Mo. SOL 10/27/2014	EO SOL 10/27/2014	
Date/Time CV Reported Sat, 04/27/2013 12:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/02/2013 3:48 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Michael Mchugh	04363	925715	034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Jesse Turner	01561	937931	034 PCT
2. POM Brian Jay	29733	919208	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Michael Mchugh	Discourtesy: Sgt. Michael Mchugh spoke rudely to § 87(2)(b)	
B.SGT Michael Mchugh	Force: Sgt. Michael Mchugh used physical force against § 87(2)(b)	
C.SGT Michael Mchugh	Force: Sgt. Michael McHugh struck § 87(2)(b) against a wall.	

Case Summary

On April 27, 2013, Sgt. Jesse Turner of the 34th Precinct filed this complaint with IAB on behalf of § 87(2)(b) generating Log Number 13-18228 (encl. 2A-2B). On May 2, 2013, the complaint was forwarded to the CCRB (encl. 2C-2D). On April 27, 2013, at approximately 9:55 p.m., § 87(2)(b) interacted with Sgt. Michael McHugh within the 34th Precinct stationhouse. The following allegations resulted:

Allegation A- Discourtesy: Sgt. Michael McHugh spoke rudely to § 87(2)(b)

§ 87(2)(g)

Allegation B- Force: Sgt. Michael McHugh used physical force against § 87(2)(b)

§ 87(2)(g)

Allegation C- Force: Sgt. Michael McHugh struck § 87(2)(b) against a wall. § 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) old at the time of the incident, is a black male who is 5'9" tall, weighs 190 pounds, and has black hair and brown eyes. § 87(2)(b)

Statements to Medical Personnel

On § 87(2)(b) § 87(2)(b) attended § 87(2)(b) while in NYPD custody. He stated that while under police custody, he complained of hunger pangs and nausea. He exchanged words with "police who proceeded to bang his head against the cell wall." He complained of pain to the back of his scalp and right side of his neck (encl. 3A).

CCRB Testimony

§ 87(2)(b) provided a telephone statement on May 7, 2013 (encl. 3B). He provided an in-person, sworn statement on June 19, 2013 (encl. 3C-3G). § 87(2)(g)

On April 27, 2013, § 87(2)(b) was arrested and taken to the 34th Precinct stationhouse, where he was placed in a holding cell. He described the holding cell area as consisting of two separate cells. § 87(2)(b) was with five other inmates, Hispanic males, whose names he recorded as "§ 87(2)(b) § 87(2)(b)," § 87(2)(b) § 87(2)(b) "§ 87(2)(b) and "§ 87(2)(b)

After being in the cell for approximately eight hours, he began to address an officer who was behind the front desk. He described this officer as a white or Hispanic male with brown or black hair and a stocky build, in his 30's. The investigation identified this officer as Sgt. Jesse Turner. § 87(2)(b) asked to speak to Sgt. Turner and stated that he wanted to go to the hospital because he was feeling drowsy, nauseous and faint. Sgt. Turner looked towards him at one point but did not acknowledge him otherwise.

Approximately 5 minutes after he began to request medical attention, five officers in plainclothes entered the holding cell area. He described one officer as a white male with dark colored hair, approximately 6'2" tall, with a stocky build, approximately 50 years old. The investigation identified this officer as Sgt. Michael McHugh. He described one officer as a Middle Eastern male, approximately 5'6" tall, with a stocky build, approximately 52 years old and another officer as a white male, approximately 6'2" tall, with a stocky build, approximately 50 years old. § 87(2)(g) . § 87(2)(b) was unable to recall the appearance of the remaining two officers.

No officers had given § 87(2)(b) any commands including for him to be quiet prior to these officers' arrival. § 87(2)(b) had not been saying anything else aside from asking for medical attention at this point. § 87(2)(b) was unsure, but believed that it would have been approximately 7 p.m. at this time. The investigation determined that the actual time was 9:55 p.m.

In his telephone statement, § 87(2)(b) stated that his interaction with Sgt. McHugh began upon his directly asking him to see a doctor. He did not say this in his sworn statement. Sgt. McHugh approached the holding cell, called § 87(2)(b) a "crybaby" and told him to sit his "ass" down. In his telephone statement, § 87(2)(b) had alleged that Sgt. McHugh said, "Shut the fuck up," called him a "pussy, and told him to "Sit the fuck down." He did not repeat these allegations in his sworn statement. § 87(2)(b) told Sgt. McHugh that he wanted to go to the hospital. Sgt. McHugh again told him to sit down and stop whining. § 87(2)(b) asked Sgt. McHugh why he did not make him shut up.

Sgt. McHugh opened the cell door and entered along with the other officers. Sgt. McHugh grabbed § 87(2)(b) by both shoulders and pushed him back against the cell wall directly opposite to the bars. The action of being pushed caused § 87(2)(b) to strike the back of his head against the wall. Sgt. McHugh grabbed and held on to § 87(2)(b) on a place where § 87(2)(b) could not recall and repeatedly pushed him against this wall, causing him to strike the back of his head approximately two times. § 87(2)(b) had his hands at his sides as he was being pushed. § 87(2)(b) sat down and the officers left the cell.

Approximately five minutes after he was pushed, EMTs arrived and took photographs of § 87(2)(b) § 87(2)(b) had sustained redness and bumps on the back of his head, which caused him pain. § 87(2)(b) was taken to § 87(2)(b) and had a CAT scan performed.

When he left § 87(2)(b) § 87(2)(b) was taken from the hospital by two uniformed officers in a marked police vehicle. The van's movements as it was being driven caused pain on the back of § 87(2)(b)'s neck to return. § 87(2)(b) did not believe however, that the van was driven in a manner purposefully intended to harm him. § 87(2)(b) again asked to be taken to a hospital and was subsequently transported by these officers to § 87(2)(b) .

Witness: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of the incident, is a Hispanic male. § 87(2)(b) has no relation to § 87(2)(b)

CCRB Testimony

On September 3, 2013, § 87(2)(b) was contacted by telephone and he provided a statement (encl. 4A). On April 27, 2013, § 87(2)(b) was arrested and taken to the 34th Precinct stationhouse. Approximately two hours after his being placed inside of a holding cell, § 87(2)(b) was placed inside as well. There were a total of approximately four prisoners in the cell. § 87(2)(b) was yelling and ranting about his arrest. He said that he wanted to go to the hospital in order to have food and a bed.

§ 87(2)(b) began to kick the cell door and yell. Two uniformed officers entered the holding cell. He described one of the officers as a white male, approximately 38 years old. The

investigation identified this officer as Sgt. Michael McHugh. § 87(2)(b) stated that the officers looked the same to him. One of the officers told § 87(2)(b) to sit down but he refused. He cursed at the officers and stated that he would not sit down. He confronted the officers and stood in close proximity to them. Sgt. McHugh tried to sit § 87(2)(b) down by holding him by the shoulders. He resisted this by bending his knees slightly. § 87(2)(b) did not mention § 87(2)(b) being pushed or an officer telling him to “sit” his “ass” down. § 87(2)(b) did not mention any officers using profanity.

The officers left the cell, closed the door behind him and did not pay attention to § 87(2)(b). § 87(2)(b) suddenly began to strike the back of his head against the wall while seated on the bench within the cell. He began to exclaim, “police brutality” and “You hurt me.” All of the officers were out of the holding cell at this time. § 87(2)(b)’s cellmates were alarmed by this and gathered together in a corner of the cell.

§ 87(2)(b) asked his cellmates to corroborate his allegations of police brutality and asked for their names. The cellmates provided false names. Paramedics arrived and took § 87(2)(b) away. § 87(2)(b) saw § 87(2)(b) the following morning at Manhattan Central Booking at approximately 7 a.m. § 87(2)(b) bragged that he had eaten a meal and had laid on a bed. § 87(2)(b) declined to provide a sworn statement.

Witness: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of the incident, is a Hispanic male. § 87(2)(b) has no relation to § 87(2)(b)

CCRB Testimony

On September 4, 2013, § 87(2)(b) called the CCRB by telephone and provided a statement (encl. 4B). On April 27, 2013, § 87(2)(b) was arrested and taken to the 34th Precinct stationhouse. He was placed in a holding cell with several individuals including § 87(2)(b). § 87(2)(b) complained about his arrest and stated that he wanted an ambulance. § 87(2)(b) began to strike the cell doors.

An officer approached the outside of the holding cell area at one point and told § 87(2)(b) to calm down and that medical personnel were en route. § 87(2)(b) did not mention any officers using profanity. § 87(2)(b) could not recall if officers entered the holding cell at any time. § 87(2)(b) fell asleep and when he woke up, he saw two EMTs escorting § 87(2)(b) out of the cell. § 87(2)(b) did not see any physical injuries on § 87(2)(b) and did not know why EMTs had taken him away.

Witness: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of the incident, is a Hispanic male. § 87(2)(b) has no relation to § 87(2)(b)

CCRB Testimony

On September 16, 2013, § 87(2)(b) was contacted by telephone and he provided a statement. § 87(2)(b) was arrested and taken to the 34th Precinct stationhouse on April 27, 2013. He stated that he was sleeping for the majority of the time that he was inside of the stationhouse’s holding cells. He stated that he was awoken at one point by a commotion, but did not know what occurred. He denied observing interaction between civilians and officers inside of the holding cell. He did not mention any officers using profanity (encl. 4C).

Attempts to Contact Civilians

The arrest record for April 27, 2013, and the Prisoner Holding Pen Roster showed that the only prisoner with a name resembling any provided by § 87(2)(b) was § 87(2)(b). § 87(2)(b) had provided the name, § 87(2)(b) § 87(2)(b) when naming the witnessing prisoners. Two letters were sent to § 87(2)(b) § 87(2)(b) at the address noted on his arrest report for this date between July 1, 2013, and July 22, 2013. Two letters were sent to a second address provided by a Lexis Nexis search between July 10, 2013, and July 22, 2013. None of the letters were returned by United States Postal Service. § 87(2)(b) was called a total of five times at the sole number provided by the Lexis search, between July 11, 2013, and July 24, 2013. None of these calls were answered and there were no prompts to leave a voicemail message.

The Prisoner Holding Pen Roster showed a prisoner who would have been inside of the holding cell for a portion of the time that § 87(2)(b) was inside, § 87(2)(b). A Lexis Nexis search yielded multiple addresses for § 87(2)(b) two of which were listed as current and were contacted. The search revealed one telephone number. Contact information for § 87(2)(b) was also obtained from an open CCRB complaint that had a complainant named § 87(2)(b) § 87(2)(b).

Letters were sent to both of the addresses provided by Lexis Nexis between September 10, 2013, and October 5, 2013. Two letters were also sent to the address provided for § 87(2)(b) § 87(2)(b) in the open CCRB complaint between September 17, 2013, and October 5, 2013. A letter sent to an address obtained by the Lexis search was returned on September 27, 2013. § 87(2)(b) § 87(2)(b) was called a total of five times at the number listed on the Lexis Request and at a number provided for the CCRB complainant of the same name between September 10, 2013, and September 24, 2013. The number provided with the open CCRB complaint was found to be out of service. Voicemail messages were left with the number provided by Lexis Nexis.

NYPD Statements:

Subject Officer: SGT. MICHAEL MCHUGH

- Sgt. McHugh, § 87(2)(b) old at the time of the incident, is a white male who is 6'3" tall, weighs 235 pounds and has is red hair and blue eyes.
- Sgt. McHugh was assigned to the 34th Precinct Street Narcotics Enforcement Unit (SNEU) from 9 a.m. on April 27, 2013, to 2:07 a.m. on April 28, 2013. Sgt. McHugh wore a uniform for his assignment but was in plainclothes at the time of the incident. Sgt. McHugh was partnered with PO Paul Bennett and PO Steven Diaz and was assigned to unmarked vehicle § 87(2)(b) a blue Ford Crown Victoria.

Memo Book

At 9:55 p.m., § 87(2)(b) began to act irrationally and violently inside of the cells of the 34th Precinct. § 87(2)(b) refused to comply with directions to sit down and took a fighting stance. Sgt. McHugh placed § 87(2)(b) onto a bench in the cell and § 87(2)(b) got back up and resumed a fighting stance. He was placed back onto the bench. § 87(2)(b) began to strike his head against the wall. ESU responded and § 87(2)(b) was removed to § 87(2)(b) via EMS (encl. 5A-5B).

CCRB Testimony

Sgt. McHugh was interviewed at the CCRB on August 29, 2013 (encl. 5C-5E). On April 27, 2013, at approximately 9:55 p.m., Sgt. McHugh was preparing to sign out and end his tour for the day. Sgt. McHugh's attention was suddenly brought to the holding cell area by yelling and

screaming. As the desk sergeant, Sgt. Turner had money and drugs on the desk at the time, which he could not leave unattended. Sgt. McHugh entered the holding cell area to investigate.

Sgt. McHugh explained that the holding cell area is entered through a glass door which is opened with a button. The area around the front desk provides a partial view of the occupants of the cells. EMS was called by Sgt. Turner, after both he and Sgt. McHugh discussed the fact that § 87(2)(b) appeared to be an emotionally disturbed person.

Sgt. McHugh entered the holding cell area, which contains two cells. No other officer entered this area. Sgt. Turner remained at the desk. § 87(2)(b) was in a holding cell with approximately four other prisoners. A female was in the adjacent cell.

§ 87(2)(b) called Sgt. McHugh a “white motherfucker” and threatened to “kick” his “ass.” Sgt. McHugh did not use profanity against § 87(2)(b). He did not recall if he told § 87(2)(b) to “sit” his “ass” down. The prisoners in the cell with § 87(2)(b) appeared to fear him and all stood in one corner of the cell. § 87(2)(b) was pacing within the cell and was glaring at the other prisoners. Sgt. McHugh decided that § 87(2)(b) posed a safety hazard to the prisoners and decided to enter the holding cell with the purpose of removing the other prisoners and isolating § 87(2)(b).

Sgt. McHugh told § 87(2)(b) to sit down multiple times and he refused. Sgt. McHugh opened the cell door and § 87(2)(b) immediately stepped in his path while clenching both fists and taking a fighting stance. When asked to show the manner in which § 87(2)(b) was standing, Sgt. McHugh demonstrated by extending both arms downwards in front of his body with closed fists and placing one foot in front of the other. Sgt. McHugh told § 87(2)(b) to step back in order to let the other prisoners out of the cell and to sit on the bench. § 87(2)(b) refused.

Sgt. McHugh held § 87(2)(b) by both arms and took several steps forward. § 87(2)(b) refused to walk in the same direction. Sgt. McHugh pushed him down onto a bench in the cell. No part of § 87(2)(b)'s body struck any surface upon his being pushed onto the bench. § 87(2)(b) immediately rose from the bench and took the same fighting stance posture that he took before.

Sgt. McHugh again pushed § 87(2)(b) on his body, causing him to sit back down on the bench. No particular part of § 87(2)(b)'s body struck any surface the second time that he was pushed. Sgt. McHugh denied purposefully pushing § 87(2)(b) against a wall while holding on to him, causing him to strike his head.

Sgt. McHugh decided at this point that any further interaction with § 87(2)(b) would have led to a physical altercation and he decided to leave the holding cell area. He exited and told Sgt. Turner to call ESU. There were no other officers inside the holding cell area by the time that Sgt. McHugh had exited. As Sgt. McHugh stood by the front desk, he heard multiple banging sounds and § 87(2)(b) stating, “Police brutality, police brutality, look what you did to me.” PO Brian Jay, whose tour was about to begin, was also standing by the front desk at this time and exclaimed that § 87(2)(b) was striking his head against the wall. Sgt. McHugh did not see § 87(2)(b) bang his head against the wall.

Sgt. McHugh waited for ESU to arrive at the stationhouse but left the area upon their arrival so that § 87(2)(b) would not become more agitated upon seeing him. Sgt. McHugh went into a back room within the stationhouse and was informed by another officer that § 87(2)(b) had been taken out of the stationhouse. Sgt. McHugh had not seen any injuries on § 87(2)(b) and could not account for the findings of § 87(2)(b) aside from § 87(2)(b) striking his own head against the wall.

Witness Officer: SGT. JESSE TURNER

- Sgt. Turner, § 87(2)(b) old at the time of the incident, is a white male who is 5'10" tall, weighs 185 pounds and has brown hair and blue eyes.
- On April 27, 2013, Sgt. Jesse Turner worked alone in uniform as the 34th Precinct stationhouse desk sergeant from 2:50 p.m. to 11:47 p.m.

Memo Book

Sgt. Turner did not make any memo book entries regarding this incident (encl. 6A-6C).

CCRB Testimony

Sgt. Turner was interviewed at the CCRB on August 8, 2013 (encl. 6D-6F). On April 27, 2013, § 87(2)(b) was brought into the 34th Precinct stationhouse as an arrest. Upon being brought to the stationhouse, he acted erratically by yelling and swearing. As he was being brought inside, § 87(2)(b) made a statement to the effect of his intending to "kill that bitch." § 87(2)(b)'s arresting officer, PO Hector Rivera, told him that § 87(2)(b) had been referring to his girlfriend or wife. Sgt. Turner decided that based on the threat, § 87(2)(b) would be sent to Manhattan Central Booking, instead of being given a desk appearance ticket (DAT).

Sgt. Turner described the holding cell area of the 34th Precinct as being approximately 15 feet to the left of the front desk. The exterior bars of the cells can be seen from the desk along with a partial view of their interiors. § 87(2)(b) was placed in a holding cell.

Upon it being explained to him that he would not be given a DAT, § 87(2)(b)'s behavior became more belligerent, and he began to scream, swear and kick the bars of the holding cell. Sgt. Turner was unsure of how much time had passed from § 87(2)(b) being brought into the stationhouse until this point. Sgt. Turner was unsure of who informed him that he would not be released with the DAT. § 87(2)(b) was with approximately four other prisoners, who were gathered together in one of the corners of the cell.

Sgt. Turner had a quantity of cash and drugs on the desk that he was responsible for vouchering. This prevented him from leaving the desk. Sgt. McHugh, whose tour was ending, passed by the front desk and volunteered to investigate. Sgt. McHugh was dressed in plainclothes at this point. PO Brian Jay may have possibly entered the holding cell area with Sgt. McHugh, but Sgt. Turner was unsure. PO Jay was in the general vicinity at this point.

Sgt. Turner heard Sgt. McHugh tell § 87(2)(b) that he needed to take a seat and relax, and that he was frightening his cellmates. § 87(2)(b) continued to scream and yell obscenities including racial slurs towards Sgt. McHugh. Sgt. McHugh approached the cell and told § 87(2)(b) to stand back as he opened the cell door. Sgt. McHugh walked into the cell. Sgt. Turner was still standing by the front desk at this point. Sgt. McHugh did not tell § 87(2)(b) to "sit" his "ass down" and Sgt. Turner did not make this statement.

PO Jay may have possibly also entered the holding cell. Sgt. Turner saw Sgt. McHugh move towards the back of the holding cell, out of his view. Sgt. Turner denied hearing any sounds indicative of a struggle. Sgt. Turner did not see § 87(2)(b) enter a fighting stance or anyone being guided to a bench within the cell. Sgt. Turner did not see any officer push § 87(2)(b) against a wall within the holding cell and he denied doing so.

Sgt. McHugh exited the holding cell after less than one minute. As he and PO Jay were crossing the threshold of the holding cell area, Sgt. Turner heard § 87(2)(b) yell, "police brutality" and "You're hurting me." At this point, PO Jay informed Sgt. Turner that § 87(2)(b) was banging his head against a wall in the cell. Sgt. Turner decided to call IAB and the duty captain.

Sgt. Turner called ESU. He could not recall if he did so before or after Sgt. McHugh exited the holding cell. Sgt. Turner also called EMS in order to check on § 87(2)(b)'s head and in regard to his status as an emotionally disturbed person. When § 87(2)(b) was escorted from the holding cell by ESU officers, Sgt. Turner noticed redness to the back of his head. PO Rivera accompanied § 87(2)(b) to § 87(2)(b).

Witness Officer: PO BRIAN JAY

- PO Jay, § 87(2)(b) old at the time of the incident, is a white male who is 6 feet tall, weighs 175 pounds and has brown hair and green eyes.
- PO Jay was assigned to the 34th Precinct conditions unit in uniform from 10 p.m. on April 27, 2013, to 6:35 a.m. on April 28, 2013. PO Jay was partnered with PO Jason Stefano and was assigned to marked vehicle 8760.

Memo Book

PO Jay did not have any memo book entries regarding this incident (encl. 7A-7B).

CCRB Testimony

On September 6, 2013, PO Brian Jay was interviewed at the CCRB (encl. 7C-7D). On April 27, 2013, at approximately 9:55 p.m., PO Jay was preparing to exit the stationhouse and begin his tour. PO Jay was in the process of retrieving a radio battery from a room directly adjacent to the front desk. PO Jay observed § 87(2)(b) stand up inside of a holding cell and begin to bang the back or side of his head several times against a wall. PO Jay did not see any police officers inside of the holding cell or holding cell area while § 87(2)(b) took this action.

PO Jay told Sgt. Turner that § 87(2)(b) was banging his head against the wall. Sgt. Turner acknowledged this and stated that he would call EMS and ESU. Sgt. Turner also informed Sgt. McHugh, who was directly beside him at the front desk, that the man was banging his head against the wall. PO Jay then went on patrol.

PO Jay did not enter the holding cell area because he was armed at the time. He did not see Sgt. McHugh enter the holding cell area. PO Jay did not hear any officer tell anyone to “sit” his “ass” down. PO Jay did not see any officer purposefully push anyone against a wall inside of the holding cell and PO Jay did not do so. PO Jay did not have any interaction with anyone inside of the holding cell.

NYPD Documents

Prisoner Holding Pen Roster

§ 87(2)(b) was placed in a holding cell at 5:25 p.m. and was taken out at § 87(2)(b) in order for him to be taken to § 87(2)(b). Prisoners identified as § 87(2)(b) and § 87(2)(b) were placed in the cells at a later time than § 87(2)(b) and were released at § 87(2)(b) on § 87(2)(b). Prisoner § 87(2)(b) was placed in the cells at an unmarked time and was also released at § 87(2)(b). § 87(2)(b) was placed in the cells at 7:55 p.m. and was taken out at § 87(2)(b) with a summons (encl. 8B).

Medical Treatment of Prisoner Form

§ 87(2)(b) complained of head pain and was noted as having a scalp contusion. EMT § 87(2)(b) and Sgt. Turner signed the form at 10:20 p.m. on § 87(2)(b) (encl. 8D).

Medical Records

Ambulance Call Report § 87(2)(b)

EMTs (Shield Numbers § 87(2)(b) and § 87(2)(b)) were assigned the job at 10:16 p.m. and arrived at 10:22 p.m. "Behavioral disorder" is checked off among a list of ailments. § 87(2)(b) was noted as having sustained blunt force and having pain to his head. It is noted that § 87(2)(b) has a psychiatric history. § 87(2)(b) was found alert at the scene. Officers stated that he had been banging his head against the wall of the cell. He was given a cold pack for his head pain. "EDP" is noted next to "presumptive diagnosis" (encl. 9A).

Medical Records- § 87(2)(b)

On § 87(2)(b) § 87(2)(b) attended § 87(2)(b) while in NYPD custody. He was diagnosed with having contusions on his face, scalp, and neck except on the eyes. He was given a cold compress for his scalp (encl. 9B).

Medical Records- § 87(2)(b)

On § 87(2)(b), § 87(2)(b) attended § 87(2)(b) while in NYPD custody. He complained of pain to both shoulders, his neck and upper back after being a passenger in a high speed chase. He was diagnosed as likely having sustained a muscle strain (encl. 9C).

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]

Civilian CCRB History

- § 87(2)(b) filed the following other CCRB complaints (encl. 1C).
 - § 87(2)(b) [REDACTED]
[REDACTED]

§ 87(2)(b)

Subject Officer CCRB History

- Sgt. McHugh has been a member of the service for 13 years with the following substantiated allegations having been made against him (encl. 1A-1B).
 - In Case 200205098, an abuse of authority allegation regarding Sgt. McHugh failing to obtain care for a dependent child was substantiated. Sgt. McHugh received a penalty of instructions.

Conclusion

Identification of Subject Officers

§ 87(2)(b) described the officer who used discourteous language and force against him as a white male with dark colored hair, approximately 6'2" tall, with a stocky build, approximately 50 years old. Sgt. McHugh is 6'3" tall, weighs 235 pounds and was 36 at the time of this incident.

§ 87(2)(g)

Allegations Not Pleaded

In his telephone statement, § 87(2)(b) had alleged that Sgt. McHugh said, "Shut the fuck up," called him a "pussy, and told him to "Sit the fuck down." § 87(2)(g)

§ 87(2)(b) stated that when he was being transported by uniformed officers from § 87(2)(b) the police vehicle's movements caused pain on the back of § 87(2)(b)'s neck to return. § 87(2)(g)

Allegation A- Discourtesy: Sgt. Michael McHugh spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that Sgt. McHugh told him to "sit" his "ass down." None of the witnesses mentioned any profanity including this statement being made against § 87(2)(b). Sgt. McHugh could not recall if he made this statement. Sgt. Turner denied Sgt. McHugh making this statement and PO Jay denied hearing any officer make this statement. § 87(2)(g)

§ 87(2)(g)

Allegation B- Force: Sgt. Michael McHugh used physical force against § 87(2)(b)

§ 87(2)(b) stated that Sgt. McHugh grabbed him upon entering the holding cell and pushed him against the cell wall, causing him to strike the back of his head. The only witness who acknowledged witnessing interaction between officers and § 87(2)(b) within the holding cell, § 87(2)(b) described § 87(2)(b) as refusing orders to sit down, cursing at officers and physically confronting officers by standing in close proximity to them.

§ 87(2)(b) described force used by Sgt. McHugh as his attempting to get § 87(2)(b) to sit down by holding him by the shoulders and § 87(2)(b) resisting by bending his knees. He did not mention Sgt. McHugh pushing § 87(2)(b). Both § 87(2)(b) and § 87(2)(b) described § 87(2)(b) as acting in a belligerent manner by yelling and striking the cell door. § 87(2)(b) findings showed that § 87(2)(b) had sustained contusions on his face, scalp, and neck.

Sgt. McHugh stated that he entered the holding cell area after determining that § 87(2)(b) posed a safety hazard to the prisoners and his deciding that the prisoners should be removed in order to isolate § 87(2)(b). Sgt. McHugh stated that § 87(2)(b) cursed at him and refused multiple commands to sit down within the cell and move back. § 87(2)(b) stood in close proximity to Sgt. McHugh while taking an offensive stance by clenching his fists.

As per Sgt. McHugh's testimony, he held § 87(2)(b) by both arms and took several steps forward. § 87(2)(b) refused to walk in this direction, at which point, as Sgt. McHugh admitted, he pushed § 87(2)(b) onto a bench within the cell. He denied any part of § 87(2)(b)'s body striking any surface upon sitting on the bench. § 87(2)(b) rose once again and Sgt. McHugh again pushed him onto the bench. He again denied any part of § 87(2)(b)'s body making contact with any surface. Sgt. McHugh then decided to leave the area, as he felt that any additional contact would have led to an altercation. Sgt. Turner and PO Jay were unable to provide accounts regarding Sgt. McHugh's actions within the holding cell.

Police officers may use the minimum force necessary to overcome a resisting individual. Patrol Guide Section 203-11 (encl. 0A-0B).

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b).

Allegation C- Force: Sgt. Michael McHugh struck § 87(2)(b) against a wall.

§ 87(2)(b) stated that after Sgt. McHugh initially pushed him, he grabbed and held on to § 87(2)(b) on a place where § 87(2)(b) could not recall and repeatedly pushed him against the wall, causing him to strike the back of his head approximately two times. § 87(2)(b) stated that upon the officers leaving the holding cell, § 87(2)(b) began to purposefully strike the back of his head against the holding cell wall and yell "police brutality," causing his cellmates to become alarmed and stand together in a corner. § 87(2)(b) further stated that § 87(2)(b) asked his cellmates to corroborate his allegations of police misconduct and that they all provided him with false names. This information is consistent with the non-existent names provided to the CCRB by § 87(2)(b).

Sgt. McHugh denied purposefully pushing § 87(2)(b) against a wall while holding on to him, causing him to strike his head against the wall. Sgt. Turner denied observing Sgt. McHugh take this action. Both Sgt. McHugh and Sgt. Turner stated that they heard § 87(2)(b) state "police brutality" after Sgt. McHugh had exited the holding cell. PO Jay stated that he observed § 87(2)(b) strike the back or side of his head against the holding cell wall as he was preparing to begin his tour. PO Jay denied Sgt. McHugh purposefully pushing § 87(2)(b) against the wall.

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b).

Team: 5

Investigator: _____	Bernardo Gutierrez	10/11/13
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date